SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 123 of 2021 (YEAR: 2021)

CORAM: D.Y. CHANDRACHUD, M.R. SHAH

Alka Khandu Avhad
... Appellant(s) / Petitioner(s)
Versus
Amar Syamprasad Mishra
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 141 NI Act

JUDICIAL HEADNOTE & SUMMARY

Held that a joint account holder who is not a signatory to the dishonoured cheque cannot be prosecuted under Section 138 unless vicarious liability applies under Section 141.

RATIO DECIDENDI

The Court held that: Held that a joint account holder who is not a signatory to the dishonoured cheque cannot be prosecuted under Section 138 unless vicarious liability applies under Section 141. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Alka Khandu Avhad v. Amar Syamprasad Mishra (Criminal Appeal No. 123 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 141 NI Act. Held that a joint account holder who is not a signatory to the dishonoured cheque cannot be prosecuted under Section 138 unless vicarious liability applies under Section 141.

OPERATIVE ORDER

ORDER: Decided